

25NWCV03591 25NWCV03591

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WCCP CERRITOS, LLC, ET AL. v. ICORE LENDING, INC.

CASE NO.: 25NWCV03591

HEARING: 07/09/2026 @ 9:30 AM

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TENTATIVE ORDER

Plaintiffs' motion for attorneys fees is GRANTED in the amount of \$13,791.50 reflecting \$11,604.00 in attorneys' fees for work performed in the prosecution of this action and \$2,187.50 in connection with this motion.

Moving party to give notice.

Plaintiffs WCCP Cerritos, LLC; Pacific Service Company, Inc.; PVP Investments, LLC; WCCP Baseline Crossings, LLC; and WCCP Arrowhead Park Place, LLC (Plaintiffs) move for an award of attorney's fees.

Background

On October 6, 2025, Plaintiffs filed this unlawful detainer action against Defendant ICore Lending, Inc. (Defendant) and Does 1 to 5 regarding the property located at 12800 Center Court Drive South, Suite 500, Cerritos, California, 90703, Los Angeles County.

On January 29, 2026, Judgment was entered in favor of Plaintiffs and against Defendant.

Legal Standard

Civil Code section 1717 subdivision (a) provides, “[i]n any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.”

“Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof.” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, citation omitted.) The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney’s fee award, courts typically determine what is reasonable through the application of the “lodestar” method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Discussion

Plaintiffs move for attorney’s fees as the prevailing parties in this action pursuant to Civil Code section 1717 and a provision in the lease entered into between the parties:

24.1. If either party brings action for relief against the other, declaratory or otherwise, arising out of this Lease, including any suit by Landlord for the recovery of Rent or possession of the Premises, the losing party shall pay the successful party its costs incurred in connection with and in preparation for said action, including its reasonable attorneys’ fees...

(Petersen Decl., Exh. 1.)

Plaintiffs request \$14,666.50 comprised of \$11,604.00 for their prosecution of this action and \$3,062.50 in connection with the instant motion. Plaintiffs support this request with a declaration by Christopher J. Petersen, partner at Blank Rome LLP. Mr. Petersen states that two attorneys worked on this matter: Gregory M. Bordo, co-managing partner of Blank Rome's Los Angeles office with an hourly rate of \$895 to \$925 and Mr. Petersen, a partner with an hourly rate of \$875. (Petersen Decl., ¶¶ 10-11.) Both attorneys' rates represent a discount from their regular hourly rate. (Petersen Decl., ¶¶ 10-11.) Mr. Petersen includes the invoices sent to Plaintiffs reflecting their time working on this action. (Petersen Decl., ¶ 6, Exh. 3.) The Court finds the hourly rates and time spent on prosecuting this action reasonable.

Defendant does not oppose this motion. Defense counsel submits a declaration stating that "Defendant will not contest [the] amount of attorneys' fees requested by plaintiff of \$11,604.00." (Holt Decl., ¶ 8.)

Plaintiffs request \$3,062.50 in connection with this motion which Mr. Petersen explains consists of the following: "1.5 hours drafting the Motion and this declaration. I expect to spend at least an additional 1 hour reviewing the opposition and drafting a reply. I expect that I will spend an additional 1 hour preparing for and attending oral argument for the Motion. At my reduced hourly rate of \$875." (Petersen Decl., ¶ 14.) Since this motion is unopposed, the Court reduces this request by one hour at the rate of \$875.

Accordingly, Plaintiffs' motion for attorneys fees is GRANTED in the amount of \$13,791.50 reflecting \$11,604.00 in attorneys' fees for work performed in the prosecution of this action and \$2,187.50 in connection with this motion.